TERMS AND CONDITIONS FOR SERVICES

These terms and conditions govern the services provided by Creator Networks in connection with LIVE Backstage (the "**Terms**") and are entered into and form a binding agreement between BD TikTok USA LLC ("**TikTok**") and you. For purposes of these Terms, "you", "your", "Creator Network", "Company", and "Service Provider" each mean the entity that you are acting on behalf of. By accepting these Terms via your authorized account on LIVE Backstage, you acknowledge and agree that you have thoroughly reviewed, understood, and agree to be legally bound by these Terms. All schedules, annexures, appendices, and policies attached to, incorporated in by reference, or provided through LIVE Backstage are deemed to be a part of these Terms. Capitalized terms used but not otherwise expressly defined in these Terms have the meanings given to them in **Schedule 1** (Definitions) attached hereto and incorporated herein by this reference.

1. **TERM**.

1.1 These Terms will be effective from the date you are notified by TikTok that you have successfully passed the LIVE Backstage onboarding review (the "**Effective Date**") and shall continue until the earlier of: (i) the expiration or termination of the last SOW entered into under these Terms; or (ii) the termination of these Terms in accordance with the terms set out herein (the "**Term**").

2. **SERVICES**.

2.1 **Statement of Work**

(a) During the Term, Creator Network shall provide the Services set forth in the statement of work attached hereto as **Schedule 2** ("**Statement of Work"** or "**SOW**") which is incorporated herein by this reference. These Terms shall be deemed incorporated into the SOW and shall govern each Party's rights and obligations. Unless otherwise stated in the SOW, in the event of any inconsistency between the terms and conditions of these Terms and the SOW, the SOW shall prevail.

(b) Creator Network acknowledges and agrees that TikTok makes no representations or warranties, whether express or implied, in relation to the success, profitability or viability of these Terms for Creator Network, including but not limited to the duration of the SOW or any compensation thereunder that Creator Network would receive (or that Creator Network would receive compensation at all), and the frequency, content, duration or nature of the Services that Creator Network will be required to perform.

2.2 **Services**.

(a) Creator Network shall provide the services set out in the SOW including all activities and services incidental to such performance (collectively, the "**Services**") in accordance with these Terms and the SOW.

(b) These Terms (and any Services furnished by Creator Network hereunder) is not exclusive and Creator Network may provide the same or similar services to third parties.

2.3 **Policies and Procedures Applicable to Services**. In performing the Services under these Terms, Creator Network will follow and comply with all of TikTok's policies and procedures that are applicable to Creator Network's Services as may be notified to Creator Network from time to time, including without limitation the following:

(a) Creator Network shall furnish the Services in a professional manner, consistent with industry standards;

(b) Creator Network shall not threaten, coerce, or harass any Creators, Platform users, TikTok personnel, or any other third party;

(c) all Content which Creators in a Network Relationship with Creator Network includes in a Live Stream must comply with the Community Guidelines, as modified or amended from time to time in TikTok's sole discretion, which can be found at https://www.tiktok.com/community-guidelines?lang=en;

(d) Creator Network shall not, and shall procure its Creators not to, falsely state, misrepresent or conceal its affiliation with any person or entity;

(e) Creator Network shall, and shall procure its Creators to, comply and remain compliant with all Applicable Laws, as well as the Platform Policies, all other regulations and guidelines, including but not limited to the FTC Endorsement Guides published by the United States Federal Trade Commission, in effect applicable to Creator Network and/or Creator's access to and use of the Platform and LIVE Backstage, including the Platform's live streaming function, and all rules, guidelines, requirements (including those set forth in an the SOW), and policies associated with LIVE Backstage (including, but not limited to, the Fee Policy and Network Relationship Rules), each of which may be modified or amended from time to time (individually a "**Policy**" and collectively the "**Policies**"). For clarity, all references to "Agency" and "Contractor" shall be understood to refer to, and accordingly apply to, Creator Network. In the event of a conflict between the terms of these Terms and the Policies, including Platform Policies, the Terms shall prevail with respect to that conflict;

(f) Creator Network, including its representatives and personnel, shall not, and shall procure its Creators not to do anything or create, publish or disseminate any Content that would harm the interests of or disparage or adversely impact the reputation or goodwill of any persons (including without limitation, TikTok, the Platform and/or its personnel), or otherwise bring any party into public disrepute;

(g) Creator Network shall store and maintain all username and password information used for access to the Platform and LIVE Backstage in a secure manner and shall not allow unauthorized users to access, modify, delete, or otherwise corrupt such information in any way. Creator Network is solely responsible for managing and maintaining the security and access credentials of its accounts on the Platform and LIVE Backstage, including but not limited to, usernames, passwords, and any other access controls. TikTok shall have no obligation to monitor or mediate access disputes among Creator Network's personnel, agents, contractors, or other representatives. TikTok disclaims any and all liability for any unauthorized access to or use of Creator Network's accounts, including but not limited to circumstances arising from internal disputes, personnel changes, misuse of credentials, or actions taken by current or former employees (including officers or others with actual or perceived decision-making authority), contractors, or affiliates of Creator Network. It is Creator Network's sole responsibility to implement and enforce appropriate internal policies and technical safeguards to control account access. Creator Network shall notify TikTok immediately if the security or integrity of any such information has been compromised or is believed to have been compromised, in which event, Creator Network shall use all commercially reasonable efforts to cooperate with TikTok in identifying what information has been accessed by unauthorized means and shall fully cooperate with TikTok to protect further unauthorized access. In the event of a dispute regarding account ownership or access rights, TikTok reserves the right, in its sole discretion and without liability, to suspend or restrict access to Creator Network's account on LIVE Backstage until the dispute is resolved to TikTok's satisfaction;

(h) Creator Network must not, and must not authorize or encourage any third party (including its Creators) to, directly or indirectly, generate viewers, impressions, click-throughs, conversions or other actions with respect to any Creator Account, Content or Services through any automated, deceptive, fraudulent, illegal or otherwise invalid means, including without limitation to (i) repeated manual clicks, (ii) the use of "robots" or other automated tools, or (iii) by inducing other TikTok users to take actions with respect to any Creator Account, Content or Services which they would not have otherwise taken through any fraudulent, illegal or otherwise inappropriate means (as determined at TikTok's sole discretion);

(i) each Creator shall have the right at any time, from time to time, for any reason or no reason at all, to discontinue working with the Creator Network to whom he/she is connected, subject to the applicable Policies;

(j) under no circumstances shall TikTok be a party to any agreement or understanding between Creator Network and any Creators, including, but not limited to, any agreement for employment, and nothing contained in these Terms shall create any such agreement or understanding between TikTok and any Creators or deem any Creators employees, agents or

Creator Networks of TikTok, or third-party beneficiaries of these Terms. In the event any dispute arises between Creator Network and any Creator(s), Creator Network shall, and shall procure its Creators, to release TikTok from claims, demands and damages of every kind and nature, known and unknown, suspected and unsuspected, disclosed and undisclosed, foreseeable or unforeseeable, arising out of or in connection with such disputes with the Creators;

(k) the Services shall be performed by individuals employed by Creator Network or third parties engaged by Creator Network on an independent contractor basis (collectively, "**Personnel**"). All Personnel engaged to render Services shall be engaged by Creator Network in its own name (and not as agent for TikTok), and Creator Network shall oversee and monitor the Services provided by all such Personnel;

(l) Creator Network shall at all times meet the Eligibility Requirements and shall provide TikTok with a valid and existing business license, tax certificates and/or such other documents as are requested by TikTok;

(m) Creator Network shall not at any time encourage, engage, solicit, recruit or contract with any Creator who is under the age of eighteen (18) years old or otherwise engage or interact with any Creator in violation of any Applicable Laws;

(n) Creator Network shall not engage in any unfair, fraudulent or coercive conduct in recruiting Creators or in its dealings with Creators, interfere with or disrupt the activities of third parties engaged with or working with Creators, or bribe, attempt to bribe, or offer any remuneration to recruit Creators; and

(o) Creator Network agrees and acknowledges that breach of any of the terms above or otherwise in these Terms will give TikTok the right to deduct certain amounts from the Fees and/or terminate these Terms immediately upon providing written notice to Creator Network. Creator Network further acknowledges and agrees that a breach of the foregoing provisions shall be deemed a material breach incapable of being cured.

2.4 **Clearance Obligations**. Creator Network shall, at its sole cost and expense, obtain and maintain all necessary rights (including Intellectual Property Rights) to enable each Creator to use any Content and Licensed Materials (excluding any TikTok Materials incorporated therein (if applicable)) provided to its Creators in a Live Stream in accordance with these Terms. Upon TikTok's request, Creator Network shall provide TikTok with copies of documentation evidencing that such rights have been obtained.

3. REPRESENTATIONS AND WARRANTIES.

3.1 **By TikTok**. TikTok represents and warrants to Creator Network that:

(a) TikTok has the right to enter into and fully perform these Terms;

(b) TikTok is duly organized, validly existing and in good standing under the laws of the jurisdiction of its formation; and

(c) the performance of TikTok's obligations under these Terms does not violate Applicable Law.

3.2 **By Creator Network**. Creator Network represents and warrants to TikTok that:

(a) Creator Network has the right to enter into and fully perform these Terms;

(b) Creator Network is duly organized, validly existing and in good standing under the laws of the territory of its formation;

(c) All information Creator Network has provided to TikTok prior to entering into these Terms or which Creator Network provides TikTok during the Term, including but not limited to information and documentation to demonstrate that Creator Network meets Eligibility Requirements, is as of the Effective Date and shall be accurate and complete;

(d) The performance of Creator Network's obligations under these Terms does not violate Applicable Law; and

(e) Its execution of these Terms and performance of its obligations under these Terms do not and will not violate any other agreement to which it is a party or otherwise bound.

3.3 Creator Network further represents, warrants and undertakes that:

(a) all Content (excluding any TikTok Materials incorporated therein in accordance with these Terms) will be Creator Network's own original creation or that of its third-party licensors and do not and will not infringe the Intellectual Property Rights of any third party;

(b) it owns exclusively all rights, title, and interest in and to all Content or has secured all necessary rights, consents, licenses, and permissions to include materials which it does not own exclusively in the Content (including without limitation using another person's name, nickname, voice, image or likeness);

(c) no Claims have been asserted, brought or are otherwise pending or threatened relating to any Content; and

(d) Creator Network has not done or omitted to do, and will not do or omit to do, any act or thing that does, could or would interfere with, increase the expense or time necessary for, or otherwise adversely affect TikTok's full enjoyment and use of all rights and privileges granted and to be granted to TikTok under these Terms.

3.4 Creator Network:

(a) agrees to verify the identity of all Creators it engages with and to ensure that, to the best of its knowledge, the Creators are not individuals who: (i) have been banned permanently by the Platform, or (ii) are affiliated with, or involved in, organized criminal activities, or (iii) are on the sanctioned lists prohibited by government agencies in accordance with ByteDance Group's policies in force from time to time;

(b) confirms that (i) neither the Creator Network, not any key employee, office, director or board member of the Creator Network has been subject to any legal proceedings, searches or seizures, investigations by any government authority, or prosecutions concerning criminal activities, bribery, corruption, money laundering, fraud, exports, violations of public procurement laws, or customs regulations in the past five years, and (ii) that no key employee, officer, director, or board member of Creator Network has been barred from acting as a director of a company in any jurisdiction.

(c) agrees to comply with ByteDance Business Partner Code of Conduct (which is available at https://supplier.bytedance.com/code.pdf).

4. **PAYMENTS**.

4.1 **Fees**.

(a) Subject to any Deduction(s) as set out in **Clause 4.2** below and provided that Creator Network has delivered to TikTok a fully executed copy of these Terms, which are inclusive of the SOW, TikTok shall pay Creator Network the Fees as calculated in accordance with the SOW as full and complete consideration for the applicable Services and for all rights granted by Creator Network to TikTok pursuant to these Terms and the terms of the SOW.

(b) TikTok may at any time, during the Term, request Creator Network to submit a correct and accurate invoice as a condition for payment of the Fee. In the event of such request, Creator Network shall invoice TikTok for the Fees and TikTok, or its designated payment agent, shall pay the undisputed Fees in accordance with the SOW.

(c) TikTok or its designated payment agent shall not be liable for any delay in making any payment if TikTok has made arrangements to make the applicable payment on time, but a delay in such payment occurred due to reasons which are not within TikTok's control.

4.2 **Deductions.** Upon the occurrence of a Deduction Event, the Fees payable to Creator Network shall be reduced by the Deduction Amount computed in accordance with the SOW. If any Deduction Event(s) occurs or is discovered after TikTok has paid the Fees to Creator Network, TikTok shall be entitled to, at its sole discretion, either (i) require Creator Network to pay TikTok the sum of the Deduction Amount which has already been paid, or (ii) deduct an amount equivalent to the Deduction Amount from the next payment of Fees due to Creator Network.

4.3 **Expenses.** Creator Network acknowledges and agrees that, as between TikTok and Creator Network, all expenses incurred by Creator Network in performing the Services (including but not limited to travel and lodging expenses, and expenses for producing equipment or services of Creator Network or any expenses of any Creator, if any) or otherwise in connection with these Terms will be borne solely by Creator Network and will not be reimbursed by TikTok.

4.4 **Payment Mechanics**. All payments under these Terms shall be payable using any payment method as set out in the SOW. As between the Parties, all bank charges, payment charges and/or similar costs and expenses in connection with the remittance of any payment hereunder, including the Fees, shall be solely borne by Creator Network.

4.5 **Taxes**. All payments due to Creator Network under these Terms are and shall be inclusive of all taxes. Creator Network acknowledges and agrees that it shall be liable for the payment of all taxes and governmental charges that apply to the Fees received hereunder ("**Taxes**"). If TikTok is required to deduct or withhold Taxes from any payments made to Creator Network and remit such Taxes to the local taxing jurisdiction, then TikTok shall have the right to withhold and remit such Taxes and pay to Creator Network the remaining net amount after the Taxes have been withheld and Creator Network shall complete all necessary tax forms requested by TikTok in a reasonable period of time.

4.6 **Fees Calculation**. Creator Network acknowledges and agrees that: (a) TikTok shall have the sole and absolute discretion to determine how the Fees which Creator Network may be entitled to receive hereunder are computed (including the calculation of any payments that TikTok may make to Creators on the Platform that may affect the Fees payable to Creator Network), and may revise such method of computation from time to time; (b) TikTok makes no representation or warranty, whether express or implied, as to the number and/or value of the virtual gifts that the Creators may receive, that any such items will result in payments of the Fees, and/or the Fees that may be earned by Creator Network; and (c) TikTok's decision regarding any Fee calculation or occurrence of Deduction Event or computation of Deduction Amount is final, and Creator Network shall have no right to dispute any such decision made by TikTok, unless evidence of any omission by TikTok is provided by Creator Network within seven days after such decision is made and communicated in writing to Creator Network.

5. INTELLECTUAL PROPERTY.

5.1 All rights and licenses granted by Creator Network under these Terms, inclusive of the SOW, shall be granted to and inure to the benefit of TikTok and its affiliates, distributors, successors, assigns, clients, agents, designees and licensees. Creator Network shall grant to TikTok an exclusive, irrevocable, perpetual, worldwide, sublicensable (through multiple tiers), transferrable, royalty-free and license-fee-free right and license to Use and Change the Content for any purposes whatsoever, in any and all languages and by any means and in any and all media now known or hereafter devised, without any obligation of attribution or consent.

5.2 **Background IP and Third-Party IP**

(a) Each Party shall remain the sole owner of its Background IP and nothing in these Terms or otherwise shall imply any assignment or transfer in ownership of a Party's Background IP.

(b) Creator Network grants to TikTok an exclusive, irrevocable, perpetual, worldwide, sublicensable (through multiple tiers), transferrable, royalty-free and license-fee-free right and license to Use and Change Creator Network's Background IP (as may be applicable), in any and all languages and by any means and in any and all media now known or hereafter devised, to the extent such Background IP is included, incorporated or embedded into any Content or Services.

(c) Creator Network shall not include, incorporate, or embed any Third Party IP (including Licensed Materials) in the Content or Services, or in any Intellectual Property Rights that Creator Network creates, develops or otherwise develops in connection with the Content or Services, without, at the cost and expense of Creator Network, entering into the necessary arrangements with such third party and procure the third party to grant to TikTok an exclusive, irrevocable, perpetual, worldwide, sublicensable (through multiple tiers), transferrable, royalty-free and license-fee-free right and license to Use and Change the Third Party IP, in any and

all languages and by any means and in any and all media now known or hereafter devised, to the extent such Third Party IP is included, incorporated or embedded into any Content or Services. Upon TikTok's request, Creator Network shall provide TikTok with copies of documentation evidencing that such rights and licenses have been obtained.

(d) To the fullest extent allowable under Applicable Law, Creator Network represents and warrants that all third-party owners of all Third-Party IP have waived and licensed to TikTok all of their "moral rights" or rights of "droit moral" in respect of the Third-Party IP or any use of them (including, without limitation, any enforcement of such rights) contained in the Content or Services.

5.3 **Third party Trademark License**. Creator Network agrees that the grant of rights and licences described in **Clause 5.2** includes the right and license to use, reproduce and display the Marks and/or Assets owned by or vested in Creator Network or a third party (as the case may be) to the extent such Marks and/or Assets are incorporated into any Content.

5.4 **No Obligation/No Guarantee**. Nothing contained in these Terms shall be construed to obligate TikTok to use or otherwise take any action to maximise the exposure of any Content or Third-Party IP or to make use of the Content or Third-Party IP.

5.5 **Takedown Right**. If TikTok is notified or otherwise becomes aware and determines in its sole discretion that any Content or Services, any portion thereof or any other materials or content made available by Creator Network to its Creator:

(a) (i) violate the Intellectual Property Rights or any other rights of any third party; (ii) violate Applicable Law or are subject to an injunction; (iii) are pornographic, obscene or otherwise violate the Policies that apply to the Platform; or (iv) are materially inconsistent with TikTok's practices or standards, or would reasonably be expected to adversely impact the reputation or goodwill of TikTok or the Platform, or otherwise bring them into disrepute; or

(b) would reasonably be expected to create liability for TikTok,

Creator Network shall, immediately upon notice from TikTok, take down or procure the relevant Creator to take down or cease displaying such Content or Licensed Materials. Creator Network shall procure that Creators shall not include within, and at TikTok's request shall immediately remove from, the Content, any content or annotations (or similar features) that conflict with the rights granted to TikTok under these Terms or interfere with TikTok's efforts to promote or monetise the Platform. Failure to notify TikTok immediately or failure of Creator Network to have the Content removed will be considered a breach of these Terms and TikTok shall have the right to, in its sole discretion, reduce the Fees or terminate these Terms immediately upon providing written notice. If the Creator Network fails to promptly take down any infringing content, TikTok may remove it at its own discretion.

5.6 **TikTok Trademark Licence.** TikTok grants to Creator Network a non-transferable, non-sublicensable, royalty-free, revocable, limited right to use the TikTok Trademark in plain characters solely in connection with the Services provided under these Terms, in the United States. All uses of the TikTok Trademark, including items and materials that incorporate or bear TikTok Trademark, shall be provided to TikTok for TikTok's written approval before actual use. Creator Network agrees that its use of the TikTok Trademark shall be of a high standard of quality and appropriate to services of similar quality in TikTok's industry. Creator Network further agrees that the nature and quality of any services it supplies in connection with the TikTok Trademark shall not adversely affect the good name of TikTok and shall conform to the reasonable standards as may be prescribed from time to time by TikTok. TikTok shall have the right to inspect any and all materials that display the TikTok Trademark to assess the level of consistency and quality of use. If, at any time, TikTok reasonably determines that Creator Network's pre-approved activities or materials bearing or offered in connection with the TikTok Trademark fail to conform to the terms of these Terms, TikTok shall so notify Creator Network in writing and Creator Network shall correct the non-conformance and provide a corrected specimen displaying the TikTok Trademark to TikTok for review within five (5) days from the written notice from TikTok regarding such non-conformance. Creator Network acknowledges and agrees that any unauthorized use of the TikTok Trademark shall be understood to be a material breach incapable of being cured under these Terms.

5.7 **TikTok's Intellectual Property**. Subject to **Clause 5.6** above, Creator Network shall not, and shall ensure that no Creator will use TikTok's Intellectual Property Rights (including but not limited to TikTok's name and other TikTok trademarks) for Creator Network's, Creator's and/or any third party's publicity, advertising or marketing purposes without the prior written consent of TikTok. Creator Network acknowledges and agrees that any unauthorized use of TikTok's Intellectual Property rights by Creator Network or any of Creator Network's Creators shall be understood to be a material breach incapable of being cured under these Terms.

6. TERMINATION.

6.1 **Termination by TikTok.** TikTok shall have the right to terminate these Terms and/or the SOW (in whole or in part):

(a) immediately by delivering a written notice to Creator Network provided that such notice is sent within the first ninety (90) days of these Terms commencing from the Effective Date (the **"Initial Period"**), or upon delivering thirty (30) days' written notice to Creator Network in the event such notice is sent after the expiry of the Initial Period, if:

(i) Creator Network fails to establish and maintain localized operations in the Territory, as designated by TikTok;

(ii) Creator Network fails to meet the performance standards for a certain period set out in the Terms and/or any SOW; or

(iii) Creator Network or any of its affiliates is removed from the LIVE Backstage program in any other Territory due to violation of applicable laws, Platform Policies or breach of its agreement with any TikTok entity.

(b) immediately by delivering a written notice to Creator Network in the event of the occurrence of any of the following:

(i) if Creator Network or any Creator violates any terms, including any representations and warranties, or Policies, set forth in, referenced in, or governed by these Terms and the SOW;

(ii) if TikTok discovers any misrepresentation on the part of Creator Network, including in inducing TikTok to enter into these Terms and/or any SOW, or in any representation or warranty of Creator Network;

(iii) if Creator Network becomes insolvent, makes a general assignment for the benefit of creditors, files a voluntary petition of bankruptcy, the filing of an involuntary petition to have a Creator Network declared bankrupt, provided such petition shall not have been dismissed, stayed or vacated within sixty (60) days thereafter, suffers or permits the appointment of a receiver for its business or assets, becomes subject to any proceedings under any bankruptcy or insolvency law (whether domestic or foreign), has wound up or liquidated, voluntarily or otherwise, makes an admission of its inability to pay its debts as they fall due, or ceases to do business in the normal course;

(iv) if any Creator Network or any of its Creators engages in the unlawful manufacture, distribution, possession, use, or being under the influence of a controlled substance, illegal drugs and/or alcohol during the time Creator is Live Streaming or otherwise in violation of Applicable Law or in any manner or at any time that may have a negative impact upon TikTok;

(v) if any Creator, Creator Network and/or or any of its directors, officers, employees, contractors, affiliates or any person acting on its behalf, have committed, or shall commit, any act, or have or become involved in any situation or occurrence tending to bring Creator, Creator Network and/or TikTok into public disrepute, contempt, scorn, scandal or ridicule, or tending to shock, insult or offend the people of this nation or any class or group thereof, or reflecting unfavourably upon TikTok's reputation or TikTok's products and services;

(vi) if Creator Network is prevented or prohibited by Applicable Law from performing its obligations under these Terms and/or any SOW;

(vii) If Creator Network fails to provide valid and required bank account information on LIVE Backstage or otherwise as requested by TikTok for purposes of remitting payment of Fees (defined below) within sixty (60) days of the Effective Date of these Terms; or

(viii) As otherwise set forth within or prescribed pursuant to these Terms.

6.2 **Termination by Creator Network.** Creator Network shall have the right to terminate these Terms upon delivering thirty (30) days' written notice to TikTok.

6.3 **Effect of Termination**. Upon any termination or expiration of these Terms (including the SOW) (in whole or in part) (as the case may be):

(a) TikTok shall owe no further obligations to Creator Network whatsoever, other than payment of any accrued and undisputed unpaid Fees (if any) due pursuant to **Clause 4** above with respect to Services performed prior to the date of the termination notice, subject to TikTok's rights under Clause 6.4 and the SOW;

(b) neither Party shall be liable to the other for damages of any kind solely as a result of terminating these Terms and/or the SOW (as the case may be) in accordance with its terms;

(c) TikTok shall have the right to continue to Use any Content uploaded or published on the Platform prior to the termination or expiration of these Terms and/or the SOW (as the case may be);

(d) Creator Network shall promptly deliver to TikTok any Confidential Information in the possession or control of Creator Network or any Personnel; and

(e) any accrued rights or liabilities of any Party shall not be affected.

6.4 **Consequences of Termination in accordance with Clause 6.1(c).** If TikTok terminates these Terms in accordance with Clause 6.1(c) above, Creator Network shall not be entitled to any further payment of Fees, and TikTok shall have the right to reduce any accrued and unpaid Fees owed to Creator Network by any applicable Deduction Amount as set out in the SOW.

7. CONFIDENTIALITY.

7.1 **Confidential Information**.

(a) Creator Network agrees, and shall procure that the Creators agree, to hold Confidential Information in strict confidence and not to use any Confidential Information for any purpose except to perform its obligations under these Terms and/or the SOW.

(b) Creator Network shall, and shall procure the Creators to, protect the Confidential Information using at least the same standard of care as it uses to protect its own Confidential Information of a similar nature from unauthorised use or disclosure, but in no event less than reasonable care.

(c) Except with TikTok's prior written approval, Creator Network shall not, in any way, directly or indirectly, disclose or distribute any Confidential Information to, or permit the reproduction of any such Confidential Information (in whole or in part) by, any person, firm, corporation, association or any other operation or entity, or use such Confidential Information, for any reason or purpose, except as expressly permitted hereunder.

(d) Creator Network shall immediately notify TikTok in the event that Creator Network or any Creator receives a subpoena that may require disclosure of any Confidential Information, and if TikTok is unable to obtain a protective order with respect to such subpoena, Creator Network shall disclose, or procure that the Creator discloses, only such information as is legally required.

(e) Notwithstanding the above, Creator Network may disclose the information described herein to its attorneys and may disclose the terms of these Terms to its accountants and other advisors who have a need to know such information, provided that such other persons or firms agree in writing to a duty of confidentiality no less restrictive as contained in these Terms.

(f) Upon the expiration or termination of these Terms for any reason whatsoever, Creator Network shall, and shall procure the Creators to, promptly return all documents and materials containing Confidential Information, or if so required at the request of TikTok, erase, remove, delete and destroy any and all material in any media (including any computer or other electronic system) containing the same.

(g) Creator Network acknowledges and agrees that any breach by Creator Network or Creators of any of its undertakings contained in this **Clause 7** will amount to a material breach that is incapable being remedied, and will result in irreparable damage to TikTok, and that in the event of any such breach or threatened breach then, without prejudice to any other rights TikTok may have, TikTok shall be entitled to injunctive relief to prevent the relevant breach (in addition to and not in lieu of any other legal or equitable relief including monetary damages).

7.2 **Press Release**. Notwithstanding the terms of **Clause 7.1**, Creator Network acknowledges and agrees that:

(a) TikTok may make public announcements, issue media releases or other public statements concerning the existence of these Terms and the Parties' relationship created thereby at its sole and absolute discretion; and

(b) Creator Network shall not, and procure that the Creators do not, make any public announcement, media release or other public statement concerning the existence of these Terms, TikTok or the Parties' relationship without TikTok's prior written approval.

8. PERSONAL DATA.

8.1 In the event that Creator Network comes into possession of Personal Data of TikTok users (including Creators), Creator Network represents and warrants it will comply with the requirements of Applicable Data Protection Laws to the extent applicable in performing its obligations under these Terms. Creator Network shall take all necessary measures to limit its access to such Personal Data on LIVE Backstage. Creator Network agrees and acknowledges that all Personal Data of TikTok users (including Creators) processed in connection with the Services shall be processed in accordance with the Data Processing Addendum attached hereto as **Schedule 3.**

8.2 Creator Network warrants and represents, and shall procure its Personnel to acknowledge and/or consent, that TikTok may collect, use, process, retain, delete, transfer, store and disclose the Personal Data of Creator Network and Personnel, in any country in which TikTok, its agents or service providers maintain facilities, for the purposes of these Terms (including for the purposes of allowing TikTok to enjoy the full benefit of the Services to be provided under these Terms and/or the SOW) in accordance with Applicable Data Protection Laws. Upon TikTok's request at any time, Creator Network shall produce evidence to TikTok's satisfaction that Creator Network has obtained necessary signed consent from Personnel as required hereunder and is in compliance with its obligations under these Terms and Applicable Data Protection Laws.

8.3 Creator Network shall provide TikTok with complete, accurate and up to date Personal Data of Personnel as may be required by TikTok, and promptly update such Personal Data when such Personal Data changes or when requested to do so by TikTok.

8.4 In the event that Creator Network comes into possession of Personal Data of TikTok users (including Creators), Creator Network will not use Personal Data in a way contrary to these Terms (unless permitted TikTok and consistent with Applicable Data Protection Laws) or which may prejudice the interests, fundamental rights and freedoms of third parties.

8.5 Creator Network shall ensure it is not subject to any restrictions or prohibitions which would prevent or restrict it from disclosing or transferring Personnel Personal Data to TikTok in connection with performance of its obligations under these Terms.

9. INDEMNIFICATION.

9.1 **Indemnification**. Creator Network shall defend (at TikTok's election), indemnify and hold harmless TikTok, its parent, subsidiaries, successors, licensees and assigns and any of their respective

directors, officers, shareholders, agents, employees, Creator Networks and representatives (the "**TikTok Parties**") against any and all Claims, losses, liabilities, obligations, damages, costs and expenses arising out of: (a) the breach or alleged breach of any representations, warranties, agreements, undertakings or certifications of Creator Network under these Terms and/or the SOW; (b) any use of any rights granted and/or materials supplied by Creator Network under these Terms and/or the SOW; (c) the gross negligence, wilful default or intentionally tortious or reckless acts or omissions or other misconduct of Creator Network; (d) failure by Creator Network to perform any obligations arising under any agreements or understandings between Creator Network and any Creators; and (e) any failure by Creator Network to comply with the terms of these Terms and/or the SOW. Without prejudice to the foregoing, as soon as Creator Network becomes aware of any actual, threatened or suspected infringement of the Intellectual Property Rights of any third party or any third-party claim on any Intellectual Property Rights arising by reason of any Content and Services, or use of any Content and Services by TikTok, Creator Network shall:

(a) promptly and fully notify TikTok in writing in respect of the same; and

(b) at no cost to TikTok and at TikTok's option, obtain for TikTok the right to continue using the affected Content and Services in the manner contemplated by these Terms.

Any attorney selected by Creator Network to defend the TikTok Parties must be reasonably satisfactory to TikTok. Any settlement of a Claim any breach of Creator Network's representations, warranties, covenants or obligations hereunder imposing a direct or indirect obligation or restriction on TikTok is subject to TikTok's prior approval

10. **LIABILITY**.

10.1 **No Injunctive or Other Equitable Relief Against TikTok**. In the event of a breach of any of TikTok's obligations under these Terms and/or the SOW, the relevant damage (if any) caused to Creator Network by such breach will not be irreparable or otherwise sufficient to give rise to a right of injunctive or other equitable relief. The rights and remedies of Creator Network in the event of a breach of these Terms by TikTok are limited to the right, if any, to recover money damages in accordance with the dispute resolution provisions set forth in **Clause 11.2**. Except as otherwise stated in these Terms, Creator Network shall not be entitled to terminate or rescind (in whole or in part) these Terms, and Creator Network shall not seek or be entitled to any equitable relief to restrict or interfere with TikTok's right to exercise and exploit any of the rights granted to TikTok under these Terms.

10.2 **Limitation on Damages**.

(a) SUBJECT TO THE FULLEST EXTENT PERMITTED UNDER APPLICABLE LAW. IN NO EVENT SHALL TIKTOK BE LIABLE TO CREATOR NETWORK OR ITS CREATORS FOR ANY INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, PUNITIVE, MULTIPLE, OR OTHER INDIRECT DAMAGES (INCLUDING WITHOUT LIMITATION TO LOSS OF PROFITS, LOSS OF BUSINESS OR REVENUE, LOSS OF ANTICIPATED SAVINGS, LOSS OF GOODWILL, DAMAGE TO REPUTATION, LOSS OF OPPORTUNITY, AND PURE ECONOMIC LOSS) ARISING OUT OF OR IN CONNECTION WITH THESE TERMS AND/OR THE SOW, WHETHER BASED UPON CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE, STRICT LIABILITY OR OTHERWISE, EVEN IF REASONABLY FORESEEABLE OR IF TIKTOK HAD BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR LOSSES.

(b) The maximum aggregate liability of TikTok, whether based on an action or claim in contract, tort (including negligence), breach of statutory duty or otherwise, arising out of, or in connection with these Terms is limited to (i) the amount of Fees earned by Creator Network under the SOW in the six (6) Months before the date on which the cause of action accrued, or (ii) $500USD, whichever is higher.

11. **GOVERNING LAW, JURISDICTION AND ARBITRATION**.

11.1 For any Creator Network located in the United States, the laws of the State of New York, without regard to New York choice-of-law principles that would result in the application of the law of any other jurisdiction, govern all matters arising out of or related to these Terms. The exclusive forum and venue for any legal action arising out of or related to these Terms shall be the United States District Court for the Southern District of New York, and the Parties submit to the personal jurisdiction of that court. If neither subject matter nor diversity jurisdiction exists in the United States District Court for the Southern District of New York, then the exclusive forum and venue for any such action shall be the courts of the State of New York located in the City of New York, Borough of Manhattan, and the Parties submit to the personal jurisdiction of that court. The Parties agree that in the event that any suit or proceeding is brought in connection with these Terms, the prevailing party shall be entitled to recover reasonable attorneys' fees and costs.

11.2 For any Creator Network located in Latin America, the applicable law will be the laws of the State of California, without regard to choice-of-law principles that would result in the application of the law of any other jurisdiction, govern all matters arising out of or related to these Terms.

11.2 **ARBITRATION AGREEMENT; CLASS ACTION WAIVER.**

PLEASE REVIEW THIS SECTION CAREFULLY, AS CREATOR NETWORK AND TIKTOK MUTUALLY AGREE TO WAIVE THEIR RESPECTIVE RIGHTS TO RESOLUTION OF DISPUTES IN A COURT OF LAW BY A JUDGE OR JURY AND AGREE TO RESOLVE ANY CLAIM OR DISPUTE AGAINST EACH OTHER ON AN INDIVIDUAL BASIS IN ARBITRATION, EXCEPT AS EXPRESSLY OTHERWISE PROVIDED IN THIS SECTION ("**ARBITRATION AGREEMENT**").

(a) Agreement to Binding Individual Arbitration Between Creator Network and TikTok

Creator Network and TikTok, including third-party beneficiaries, agree that any dispute, claim or controversy arising out of or relating to these Terms or the existence, breach, termination, enforcement, interpretation or validity thereof will be resolved by binding arbitration, and not in a court of law or by a jury trial.

Such arbitration will be conducted only on an individual basis, and Creator Network and TikTok are each waiving the right to resolution of disputes in a court of law by a judge or jury or to participate as a plaintiff or class member in any purported class, collective, or consolidated action (and, to the fullest extent permitted by law, representative proceeding) ("**Class Action Waiver**").

(b) Exceptions to Arbitration

Notwithstanding any other provision in this Agreement, this Arbitration Agreement will not require arbitration of the following types of claims: (a) small claims actions brought on an individual basis that are within the scope of such small claims court's jurisdiction, (b) specific performance, injunctive relief injunctive relief, or any other remedies available under applicable law to prevent the actual or threatened infringement, misappropriation or violation of a Party's confidentiality rights or copyrights, trademarks, trade secrets, patents or other intellectual property rights, and (c) claims that may not be subject to arbitration as a matter of generally applicable law.

(c) Governing Law and Rules

The Parties agree and acknowledge that this Arbitration Agreement evidences a transaction involving interstate commerce and that the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ("**FAA**") will govern its interpretation and enforcement. The arbitration will be administered by the American Arbitration Association ("AAA") in accordance with the AAA's Commercial Arbitration Rules (the "AAA Rules") then in effect, and the Parties agree that the arbitrator ("**Arbitrator**") will have exclusive authority to resolve threshold arbitrability disputes including those relating to the interpretation, applicability, enforceability, validity or formation of this Arbitration Agreement. Any issue not governed by the FAA and AAA Rules will be resolved under the laws of the state of New York to the fullest extent permitted by law.

(d) Procedure

A Party that seeks to initiate arbitration must provide the other Party with a written Demand for Arbitration, as specified in the AAA Rules. The Arbitrator will be either (1) a single retired judge or (2) a single attorney licensed in the state of New York, selected by the Parties (or appointed by AAA if the Parties cannot agree) from the AAA's roster of commercial dispute arbitrators. Unless the

Parties otherwise agree or the Arbitrator otherwise requires, the arbitration will be conducted in the City of New York, Borough of Manhattan, and claims that do not exceed $10,000 will be conducted solely on the basis of documents submitted by the parties. The Arbitrator will issue a reasoned, final, and binding decision, and judgment on the Arbitrator's award may be entered in any court having appropriate jurisdiction.

(e) Severability

If any portion of this Arbitration Agreement is found to be unenforceable or unlawful for any reason, (i) the unenforceable or unlawful provision will be severed from this Arbitration Agreement, (ii) the remainder of the Arbitration Agreement will be given full force and effect, and (iii) severance of the unenforceable or unlawful provision will have no impact on the remainder of the Arbitration Agreement or the Parties' ability to compel arbitration of any remaining claims on an individual basis; provided that severance will not result in severing the Class Action Waiver in Clause 11.2(a) in any manner that permits mass arbitration, to which the Parties expressly do not consent.

12. MISCELLANEOUS.

12.1 **TikTok's Remedies**. The rights and privileges granted and agreed to be granted to TikTok pursuant to these Terms are of a special, unique, unusual, extraordinary and intellectual character, making them difficult to replace and giving them a peculiar value, the loss of which cannot be reasonably compensated in damages in an action at law. If Creator Network shall breach any provision of these Terms, TikTok will be caused irreparable damage, and therefore TikTok shall be entitled as a matter of right, at its election, to enforce these Terms and all of the provisions hereof by injunction or other equitable relief.

12.2 **No Waiver**. All remedies shall be cumulative and the exercise of one shall not preclude the exercise of any other remedy. A failure or delay by a Party to exercise any right or remedy provided under these Terms or by law shall not constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict any further exercise of that or any other right or remedy. A waiver of any breach shall not constitute a waiver of any prior or subsequent breach.

12.3 **Notices**.

(a) Notices to Creator Network shall be sent via e-mail at the e-mail address first written above or at the mailing address first written above. With respect to non-legal notices and communications, notices and communications, including the introduction of a new Policy or a change to an existing Policy, may be provided to Creator Network by way of announcement via the Announcement Board or any other mean via LIVE Backstage. All communications provided under or in relation to these Terms and/or the SOW shall be in writing. Legal notices to TikTok should be sent to contractnotice@tiktok.com.

(b) All such notices or communications shall be deemed to be received:

(i) in the case of hand delivery or mail, when delivered personally, by courier or overnight delivery service,

(ii) in the case of email or facsimile, at the time of transmission, or, if this time falls outside business hours in the place of receipt, when business hours resume. In this **Clause 12.3**, business hours mean 9.00am to 6.00pm Pacific Time (PT) on a Business Day, and

(iii) in the case of an announcement via the Announcement Board, at the time of the release of such announcement via the Announcement Board.

12.4 **Assignment**. TikTok may assign, novate, delegate and otherwise transfer its rights and obligations under these Terms in whole or in part (including the SOW) to any person or entity without limitation and without the consent of Creator Network. Creator Network undertakes to do all things and execute all documents necessary to facilitate such assignment, novation, delegation or transfer. Creator Network shall not assign, novate, delegate or otherwise transfer any of its rights or obligations under these Terms, in whole or in part, voluntarily or involuntarily, by operation of law or merger, or in any

other manner, without the prior written consent of TikTok, which consent may be withheld at TikTok's sole and absolute discretion.

12.5 **Compliance with Law.** Without limiting any other specific obligations of Creator Network hereunder, Creator Network shall, and will procure that its Creators shall, comply with all Applicable Laws in performing its obligations under these Terms and/or the SOW. Creator Network shall be responsible for making any filings with, and applying for, obtaining and maintaining all Approvals for all the matters pertaining to Creator Network's performance under these Terms and/or the SOW and shall procure that the Creators obtain such Approvals to the extent required.

12.6 **Trade Compliance.**

(a) The Parties agree to comply with all economic sanctions and export control laws and regulations ("**International Trade Compliance**") applicable to these Terms, including the laws and regulations where products/services relating to these Terms are offered or available.

(b) Each Party represents and warrants that, at the time of agreeing to these Terms, it is not subject to any sanctions or relevant program maintained by applicable government authorities, not a military related agency, and is not owned, controlled by, or acting for or on behalf of, one or more of such persons/entities.

(c) The Parties agree that, should either Party be unable to continue to perform its obligations under these Terms in compliance with applicable International Trade Compliance due to International Trade Compliance restrictions, both Parties shall review the impact of such restrictions together in an effort to seek a solution to continue to perform these Terms in compliance with applicable International Trade Compliance, or terminate these Terms upon mutual consent.

(d) Without limiting the foregoing, should any Party violate any applicable International Trade Compliance, making any continued performance of these Terms violate applicable International Trade Compliance, the other Party is entitled to terminate performing relevant obligations under these Terms. The violating Party shall compensate the non-violating Party for any losses incurred by such violation.

(e) Creator Network agrees to permit TikTok to use any information related to Creator Network including, but not limited to, business name, place of incorporation, beneficial owners, and/or directors for the purposes of sanctions screening. For avoidance of doubt, TikTok's ability or act to screen does not remove any obligation and/or liability upon Creator Network within these Terms.

12.7 **Independent Contractor**. The Parties hereby acknowledge and agree that Creator Network's relationship with TikTok is that of an independent contractor, and that nothing in these Terms and/or the SOW is intended to, or should be construed to, create a partnership, agency, fiduciary, representative, joint venture or employment relationship between the Parties. Creator Network acknowledges and agrees that Personnel employed or utilized by Creator Network in providing Services or the Creators to which Creator Network provides the Services to are not common law employees of TikTok. Creator Network is solely responsible for determining the proper classification of its Personnel and Creators. Creator Network will defend, indemnify, and hold TikTok harmless from and against any losses or liabilities related to any claims of misclassification of Personnel or Creators, and any failure to comply with wage and hour laws and regulations pertaining to Personnel or Creators, and/or any other claim arising between Creator Network and Personnel or Hosts. Creator Network is solely responsible for compensating its employees and for complying with all laws relating to its employees. Creator Network further acknowledges that its employees are not eligible to participate in any TikTok benefits, whether offered pursuant to a plan or otherwise, including welfare or pension benefits, retirement or incentives. Creator Network shall be solely responsible for the hiring, termination, direction, control and conduct of its employees, and for ensuring that Personnel are eligible and qualified to perform Services under these Terms. Creator Network acknowledges and agrees that it has the exclusive right to control its employees in performing any services for the Creator Network and that nothing in these Terms shall give the TikTok the right to dictate or control the manner or means of the Creator Network's employees' services. Neither Creator Network nor any of its employees shall have the right to purchase goods or services in the name of TikTok, execute or make contracts in the name of TikTok or obligate TikTok in any way except as

expressly agreed to by TikTok in a SOW. Creator Network shall not make representations to any third parties that it is employed by or "sponsored by" TikTok. For the avoidance of doubt, nothing in these Terms and/or any SOW shall cause the Creators to be construed as employees, agents, Creator Networks or representatives of TikTok and Creator Network shall not at any time take an actions that would indicate or imply that any such relationship exists between TikTok and any Creators. Creator Network acknowledges and agrees that a breach of this section 12.7 shall be a material breach incapable of being cured.

12.8 **Survival**. The following Clauses of these Terms (and any other provision(s) of these Terms required to implement or establish the meaning of such surviving Clauses or which, by its terms, is intended to apply or continue to apply following the termination or expiration of these Terms) shall survive any termination or expiration of these Terms: **Clause 3** (Representations and Warranties); **Clause 5** (Intellectual Property); **Clause 6** (Termination); **Clause 7** (Confidentiality); **Clause 9** (Indemnification); **Clause 10** (Liability); **Clause 11** (Governing Law, Jurisdiction and Arbitration); and **Clause 12** (Miscellaneous).

12.9 **Further Assurance**. Creator Network shall execute and deliver any further and additional documents or take any action consistent with these Terms that TikTok may deem necessary to carry out and effectuate any and all of TikTok's rights under these Terms and shall procure that the Creators do the same. If Creator Network or Creators fails to take any such action within three (3) Business Days after TikTok's notice, then Creator Network hereby irrevocably appoints TikTok as the attorney-in-fact of Creator Network coupled with an interest to execute such documents and take any such actions.

12.10 **Entire Agreement**. These Terms (including any SOWs and all schedules, annexures, appendices, and policies attached or incorporated in thereto by reference) set forth the complete understanding between the Parties with respect to the subject matter hereof, and all prior agreements have been merged herein, whether written or oral, and may not be modified except by a written instrument signed by all Parties or as set forth in Section 12.12. Creator Network acknowledges that no representation or promise not expressly contained in these Terms has been made by TikTok or any of its agents, employees or representatives.

12.11 **Severability**. If any provision of these Terms is illegal or unenforceable pursuant to any present or future Applicable Law, the provision shall be severed only to the extent necessary to make such provision legal and enforceable, and no other provision of these Terms shall be affected.

12.12 **Variation**. At any time during the Term, TikTok may vary and/or amend any provision of these Terms and/or any SOW ("**Amendment**") by giving Creator Network written notice of such Amendment ("**Amendment Notice**") via e-mail or the Announcement Board. Creator Network shall have a period of three (3) Business Days ("**Acceptance Period**") after receipt of an Amendment Notice to notify TikTok via e-mail or the Announcement Board of its acceptance of an Amendment. If Creator Network does not affirmatively accept an Amendment within such Acceptance Period or notifies TikTok of its rejection of the Amendment within the Acceptance Period, then these Terms shall immediately terminate. Except as expressly set forth in this section 12.12, no amendment to these Terms shall be valid unless it is in writing and duly executed by or on behalf of all the Parties to these Terms.

12.13 **Headings**. The headings and sub-headings in these Terms are inserted for convenience only and shall not affect the construction of these Terms.

12.14 **Counterparts**. These Terms (including any SOWs) may be circulated for signature through electronic transmission, including, without limitation, facsimile and email, and all signatures so obtained and transmitted shall be deemed for all purposes to be original signatures. Parties may sign the same in any number of counterparts, each of which counterpart shall be deemed an original, but all of which taken together shall constitute one and the same original binding agreement.

12.15 **Electronic Acceptance.** The Parties agree that this Agreement may be executed electronically and the Parties agree that this Agreement, or any part thereof, shall not be denied legal effect, validity or enforceability solely on the ground that it is in the form of an electronic record. The Parties further agree that they shall not dispute the validity, accuracy, legal effectiveness or authenticity or enforceability of this Agreement merely on the basis that this Agreement is executed by way of clicking a designated acceptance box on LIVE Backstage, and that such electronic record shall be final and conclusive of the Parties' agreement of any relevant matter as set out in this Agreement.

12.16 **Expenses**. Each Party shall bear its own costs and expenses incurred in connection with the negotiation and execution these Terms (including the costs of legal counsel and other advisors).

12.17 **No Third Party Beneficiaries**. Nothing in these Terms is intended or shall be construed to give any person or entity not a party to these Terms any legal or equitable right, remedy or claim under or in respect of these Terms or any provision contained herein.

12.18 **Anti-Corruption.**

(a) Creator Network, its affiliates or any of their respective officers, employees, shareholders, representatives, agents or Creator Networks (collectively the "**Associated Parties**") shall not request, accept, offer or give any off-books commission, improper gift or other financial benefit or inducement from or to any employee of TikTok, or any other person including government officials in connection with these Terms, and shall ensure that third party agents and subcontractors acting on its behalf shall not request, accept, offer or give any such off-books commission, improper gift, benefit or inducement. Once Creator Network becomes aware of any suspected or alleged acceptance or provision of such off-books commission, improper gift or benefit in connection with these Terms, it shall immediately notify TikTok with details of such incident.

(b) Creator Network and its Associated Parties shall be solely responsible for complying with the Anti-Corruption Laws and shall not to their best knowledge take or fail to take any actions, which may subject TikTok or its affiliates to liability under the Anti-Corruption Laws.

(c) The Parties agree that any non-compliance of Creator Network, even partial, with this clause (including any change of circumstance without prior notice to TikTok), which TikTok reasonably believes may result in adverse consequences for TikTok, shall be considered a material breach that is incapable of remedy under these Terms and, as a consequence, shall entitle TikTok, by serving notice, to immediately terminate these Terms and be released from all obligations to pay consideration thereunder.

SCHEDULE 1

Definitions

In these Terms, the following terms will have the meanings given below:

"**Active**" means an account that had a Live Stream conducted from the relevant account of a Creator within the last twenty-nine (29) days.

"**Terms**" means these Terms and Conditions for Services and all relevant SOWs.

"Anti-Corruption Law" means any laws of the countries in which we do business, including but not limited to: (i) the *U.S. Foreign Corrupt Practices Act of 1977 (the **"FCPA"**)*; (ii) the *UK Bribery Act 2010*; and (iii) any other applicable anti-corruption laws, regulations and rules.

"Announcement Board" means the announcement feature on LIVE Backstage made available by TikTok to communicate to and notify Creator Network of any Policies, changes and/or updates, including but not limited to changes and updates to then existing Policies or the addition of a new Policy, Creator Network's activities, and key features to the Platform and/or LIVE Backstage.

"Applicable Data Protection Laws" means all laws and regulations relating to data privacy and/or protection as set forth in Schedule 3.

"**Applicable Law**" means any statute, directive, order, enactment, regulation, bylaw, ordinance, subordinate legislation, regulation, common law or law of equity applicable to these Terms.

"**Approvals**" means all permits, authorizations, variances, waivers, licenses, and "**Approval**" shall be construed accordingly.

"**Arbitration Agreement**" has the meaning ascribed to it in **Clause 11.2**.

"**Arbitrator**" has the meaning ascribed to it in **Clause 11.2(c)**.

"**Assets**" means branded, marketing or promotional assets.

"**Authority**" means any supervisory or government agency, body or authority having regulatory or supervisory authority over TikTok or Creator Network, or TikTok's or Creator Network's assets, resources or business or over the Services.

"**Background IP**" means any Intellectual Property Rights created or owned by a Party prior to, or independently of, these Terms.

"Business Day" means any day other than Saturday, Sunday or any day which is a legal holiday in the United States.

"**Change**" means to change, amend, add to, take from, translate, reformat or otherwise repurpose, and "**Changes**" shall be construed accordingly.

"**Claims**" means any claims, demands, proceedings or actions by a third party (including any brought by an Authority).

"**Class Action Waiver**" has the meaning ascribed to it in **Clause 11.2(a)**.

"**Competitors**" shall have the meaning set out in the relevant SOW (if defined therein).

"**Community Guidelines**" means the guidelines issued by TikTok (as may be amended from time to time) for the purpose of ensuring a safe and friendly environment on the Platform.

"**Confidential Information**" means: (a) any information which TikTok has either (i) advised Creator Network is confidential (ii) is marked as confidential or (iii) which under the circumstances, should reasonably be recognized as confidential, including, but not limited to, any information regarding the subscribers to the Platform; (b) any information with respect to TikTok's Intellectual Property Rights; (c) any work done, and any information provided, in connection with the performance of the Services or other obligations of Creator Network hereunder; and (d) the terms of these Terms including all information relating to TikTok's fee and reward structures.

"Content" means any content (whether Live Stream content or otherwise) or other materials created by Creator Network under these Terms and the SOW including, but not limited to, content which includes, incorporates or embeds TikTok Materials and Licensed Materials.

"Creator" means a natural person who is eighteen (18) years of age or older and who connects with a Creator Network so that Creator Network can provide Services pursuant to these Terms. For clarity, all references "Host" in the Policies shall be understood to mean "Creator" as defined herein.

"**Creator Account**" means Creator's account on the Platform through which Creator provides the Services.

"**Deduction**" means the act of reducing the Fees by the Deduction Amount upon the occurrence of a Deduction Event.

"**Deduction Amount"** means the amount as determined by TikTok to be deducted from any Fees in the event of a Deduction Event as specified in the relevant SOW.

"**Deduction Event**" means an event as specified in the relevant SOW which will result in a reduction of the relevant Fees.

"**Eligibility Requirements**" means Creator Network must be an entity organized and in good standing within its territory of formation, registration, and/or incorporation, and the Personnel of Creator Network have passed a background check conducted by TikTok.

"**FAA**" has the meaning ascribed to it in **Clause 11.2(c)**.

"**Fees**" has the meaning given to it as set out in the relevant SOW.

"**Intellectual Property Rights**" means all rights of any nature in patents, registered designs, registered trademarks and service marks, and all extensions and renewals thereof, unregistered trademarks and service marks, business and customer names, unregistered designs, internet domain names and email addresses, design rights, topography rights, rights in inventions, utility models, database rights, know-how and copyrights (including moral rights); applications for any of the foregoing and the right to apply for any of the foregoing in any country; rights under licenses, consents, orders, statutes or otherwise in relation to the foregoing; rights of the same or similar effect or nature anywhere in the world; and the right to sue for past and future infringements of any of the foregoing rights.

"**Licensed Materials**" means any materials licensed to Creator Network by third parties excluding TikTok Materials.

"**LIVE Backstage**'' means a system made available by TikTok for Creator Network to manage its Creators' live stream-related performance on the Platform.

"**Live Stream**" means use of the Platform to webcast live and interact with other users of the Platform.

"**Marks**" means trademarks, service marks, brands, names, logos and corporate markings.

"**Month**" means a calendar month during any the SOW Term.

"**Party**" means TikTok or Creator Network (as the case may be), and "**Parties**" shall be construed accordingly.

"Personal Data" means personal data as defined under **Schedule 3**.

"**Platform**" means the software and platform (mobile application, websites, etc.) titled "TikTok", including Live Backstage, and in the event the name of "TikTok" is changed, the relevant SOW shall be deemed to be amended to reflect such change.

"**Platform Policies**" means the TikTok Terms of Service available at https://www.tiktok.com/legal/terms-of-service?lang=en, the Community Guidelines available at https://www.tiktok.com/community-guidelines?lang=en, the Virtual Items Policy available at https://www.tiktok.com/legal/virtual-items?lang=en#virtual-items-row and the Intellectual Property Policy available at https://www.tiktok.com/legal/copyright-policy?lang=en, as each may be updated, modified or amended from time to time and other policies and guidelines of the Platform and LIVE Backstage which are available

on the Platform, LIVE Backstage, or supplied to Creator Network and/or Creator and that are in effect from time to time.

"**Policies**" has the meaning ascribed to it in **Clause 2.3(e)**.

"**Promotion**" means to market, advertise or otherwise promote.

"**Services**" has the meaning ascribed to it in **Clause 2.2**.

"**SOW Effective Date**" has the meaning ascribed to it in **Clause 2.1(b)**.

"**SOW Term**" means the term of the relevant SOW.

"**Statement of Work**" or "**SOW**" has the meaning ascribed to it in **Clause 2.1(a)**.

"**Territory**" means the geographical territory identified in the relevant SOW in which the Services will be provided.

"**Third Party IP**" means any Intellectual Property Rights which are owned by or vested in a third party, including without limitation to Licensed Materials.

"**TikTok Materials**" means any, materials, the TikTok Trademarks or Marks or Assets owned by or attributable to TikTok or any of its group companies (including without limitation any functions or materials of the Platform) that might be provided to, used by or incorporated into any Content by Creator Network as expressly permitted under these Terms.

"**TikTok Parties**" has the meaning ascribed to it in **Clause 9.1**.

"**TikTok Trademark**" means the TikTok word mark.

"**Use**" means: (a) access, transfer, archive, store, Creator and cache; (b) display, perform, transmit, stream, distribute, communicate to the public, broadcast, disseminate, and otherwise exploit, in whole or in part, including on a live-streaming or video-on-demand basis, on or through the Platform or otherwise; (c) index, analyse, annotate, attach metadata to and search and create algorithms based on such materials; (d) create, search and share, and grant end users of the Platform (and other third-party platforms) the right to create, search and share links and inline streams of such materials (including by embedding on third-party websites and applications); or (e) transcode, route, copy, duplicate, reproduce, re-compress, encode, reformat, adapt, assemble, process, excerpt, analyse, display (publicly and otherwise), make available or otherwise modify such materials for the purpose of exercising the rights under the foregoing sub-Clauses (a)-(d), and includes the right to exploit the materials (in whole or in part) in connection with any Promotion related to the Content, the Platform, TikTok or the TikTok brand.

SCHEDULE 2

Statement of Work (SOW)

Live Streaming

This SOW is entered into between TikTok and Creator Network in accordance with the Terms. The Terms shall be deemed incorporated into this SOW by reference. Initially capitalized terms used but not otherwise expressly defined in this SOW have the meaning given to them in Schedule 1 (Definitions) to the Terms.

General	
Effective Date of SOW	1. The Effective Date as set forth in the Terms.
SOW Term	2. The term of this SOW shall commence on the Effective Date and shall continue for six (6) months from the Effective Date ("**Initial Term**"), unless terminated in accordance with the terms of the Terms or this SOW. This SOW will automatically renew for successive six (6) month periods (each a "**Renewal Term**", and together with the Initial Term shall collectively be referred to as the "**SOW Term**"), unless terminated as provided in the Terms or unless TikTok provides Creator Network with written notice of its intent to not renew this SOW at least fifteen (15) days prior to end of the Initial Term or Renewal Term, whichever is applicable.
Platform	3. TikTok (the name of which may be modified by TikTok from time to time)
Creator(s)	4. TikTok will work with Creator Network and have the metrics of each Creator connected to Creator Network added to Creator Network's LIVE Backstage account in a timely manner. 5. Creator Network will provide the Services in accordance with the Terms and this SOW.
Territory	6. The geographic territory in which the Services will be provided as specified on LIVE Backstage.
Services	
Services	During the SOW Term, Creator Network shall provide the Services to TikTok in accordance with the following provisions: 7. Live Streaming. Creator Network will work with each of its Creator to help, train, guide and encourage each Creator to use the Platform to Live Stream in accordance with the Policies, including Platform Policies. 8. Campaigns. TikTok will from time-to-time share information about an upcoming campaign or promotion with Creator Network and Creator Network may work with its Creators to meet the goals of the particular campaign or promotion.
TikTok Materials (if any)	9. None.
Charges	
Fees	10. The fees payable by TikTok under this SOW shall comprise the following: a. Creators are entitled to earn virtual credits ("**Diamonds**") from users of the Platform in accordance with the Virtual Items Policy

	contained in the Terms of Services of the Platform Policies. Diamonds are based on the virtual gifts that a Creator receives as a result of his/her Live Streams at a rate of conversion determined in the Virtual Items Policy. Creators can choose, by selecting the relevant options in their user account, to withdraw Diamonds in exchange for monetary compensation through the Platform. Creator Network shall be entitled to earn a monthly performance fee in an amount calculated based on various factors (determined in the Virtual Items Policy from time to time), including the number of Diamonds earned by Creators connected to Creator Network (the "**Performance Fee**"); and b. Creator Network shall also be entitled to earn incentives in an amount calculated based on various factors identified by TikTok per month (subject to change from time to time), including the number of Creators recruited by Creator Network during a certain period of time (the "**Incentive Payment**"). 11. The Performance Fee and the Incentive Payment are collectively referred to as the "Fees". 12. TikTok shall calculate all Fees for Creator Network in accordance with TikTok's applicable fee policies ("**Fee Policy**"). The Fee Policy is available at the following and may be updated, modified or amended from time to time: https://live-backstage.tiktok.com/policy?region=US. Creator Network acknowledges and agrees that all information relating to the Fees are confidential information, highly sensitive and must be kept confidential in accordance with the terms of the Terms.
Modification of Fees	13. Pursuant to Section 12.12 of the Terms, at any time during the Term, TikTok shall have the right (to be exercised in its sole discretion) to revise, change, adjust, decrease, increase or otherwise modify (collectively "Change") the calculations, schedules and/or conditions of the Fees upon providing written notice via e-mail or the Announcement Board to Creator Network of at least seven (7) calendar days prior to the effective date of the Changes (the "Modification Notice"). 14. Creator Network shall have three (3) Business Days after receipt of the Modification Notice to notify TikTok via e-mail or the Announcement Board of its acceptance of the Change. If Creator Network does not affirmatively accept within three (3) Business Days or notifies TikTok of its rejection to these Changes, then this SOW shall immediately terminate.
Payment Terms	15. TikTok will provide a Monthly statement on LIVE Backstage which provides the statistics and calculations for the Performance Fee and Incentive Payment payable to Creator Network for the preceding Month ("Monthly Statement"). TikTok may request that Creator Network signs and/or confirms the Monthly Statement within five (5) Business Days. 16. Upon confirmation of the Monthly Statement, Creator Network shall issue an invoice to TikTok. 17. TikTok shall pay the Performance Fee and the Incentive Payment (if any) due for any Month within thirty (30) days following receipt of a valid invoice from Creator Network, provided that Creator Network has delivered to TikTok a fully executed copy of the Terms and this SOW.

	18. TikTok Inc. will make the payment before July 1, 2026, and BD TikTok USA LLC will make the payment from July 1, 2026 (including unsettled payable generated before July 1, 2026 , if any).
Currency	19. United States Dollars or other currency, at the discretion of TikTok.
Payment Account	20. All Fees payable to Creator Network hereunder shall be paid to Creator Network via wire transfer to the bank account provided by Creator Network on LIVE Backstage. Creator Network acknowledges and agrees that: (a) it is required to provide the specific bank account details requested on LIVE Backstage in order to receive payment of Fees; (b) such account details are due within sixty (60) days of the Effective Date of the Terms; and (c) payment of Fees is subject to Creator Network meeting all Eligibility Requirements. 21. Creator Network represents and warrants that the account details to be provided on LIVE Backstage will be complete, accurate, and up-to-date. TikTok shall be discharged from any responsibility or liability arising from any payments made hereunder in accordance with the bank account information provided on LIVE Backstage. Creator Network represents and warrants that it is the sole owner of the bank account to be provided on LIVE Backstage. Failure by Creator Network to provide accurate information in connection with this provision may result in delayed or forfeiture of payment of Fees.
Deduction Event(s)	22. For the purpose of the Terms and this SOW, a Deduction Event shall be deemed to have occurred if: a. Creator Network or any of its Creator(s) violates any Policies and/or any terms and conditions of the Terms and/or this SOW; b. TikTok makes any clerical errors in computing the Fees to be paid to Creator Network, such that Creator Network receives an overpayment of Fees; or c. TikTok is required to refund any virtual coin(s) for any reasons.
Deduction Amount	23. Creator Network acknowledges and agrees that: a. For any refund of virtual coins by TikTok for any reason, TikTok shall have the right to reduce the amount of the Fees proportionate to the reduction in the total value of the virtual gifts, that are purchased with such virtual coins, received by the Creators; and b. For any clerical errors made by TikTok which result in an overpayment of Fees, TikTok shall have the right to reduce the amount of the Fees to reflect the actual amount of Fees which Creator Network is entitled to. c. For any other Deduction Event, TikTok shall have the right in its discretion to determine the amount of the Fees to be reduced. (Such amount of deduction or reduction set forth above shall be referred to as "**Deduction Amount**".)
Costs and Expenses	24. Creator Network shall be solely responsible for paying the costs and expenses incurred in connection with the Services and related to Creator Network's respective obligations hereunder.
Others	

Languages	25. These Terms and this SOW is prepared in the English language. In the event that these Terms and/or this SOW is translated into another language, the English language version shall prevail in the event of any ambiguities or inconsistencies.
Prohibited Conduct	26. In addition to complying with all applicable policies, obligations, and requirements in connection with the Terms, including those set forth in the Terms and this SOW, Creator Network further agrees: a. Creator Network shall not establish a Network Relationship (as defined in the Network Relationship Rules, which will be provided to Creator Network through LIVE Backstage and as may be updated or amended from time to time) with creators on the Platform that are ineligible to become Creators or Creators who; (i) are already in an existing Network Relationship with a third-party service provider providing services in connection with LIVE Backstage; (ii) do not meet the requirements regarding diamond levels, follower count, or other eligibility criteria provided by TikTok from time to time; or (iii) are physically located outside of the Territory. b. Creator Network shall not coerce, encourage, or solicit any creator on the Platform that does not meet minimum age requirements to live stream on the Platform or use any live stream features, including, but not limited to those set forth in TikTok Virtual Items Policy found on https://www.tiktok.com/legal/page/row/virtual-items/en, which is hereby incorporated herein by this reference. c. Creator Network shall not, and may not coerce, encourage, or solicit any Creators or creators on the Platform to: (i) cheat or engage in fraudulent behaviour to tamper with or falsify any performance information or data or (ii) violate any of the Platform Policies. d. Creator Network shall not Purport to act on behalf of TikTok without first obtaining TikTok's prior written approval in each instance. Creator Network acknowledges and agrees that violating the foregoing shall be understood to be a material breach incapable of being cured under the Terms. e. Except as otherwise set forth in this SOW, Creator Network shall not use any TikTok Materials for any purpose without TikTok's prior written approval in each instance. f. Creator Network shall not poach or appropriate creators on the Platform that are cooperating with other third-party service providers providing services in connection with LIVE Backstage. For clarity, each of the above shall be understood to be included in the definition for "**Policies**".
Violations	27. Without limiting or waiving any other rights or remedies available to TikTok, if Creator Network violates the Terms, this SOW (including, but not limited to, the Prohibited Conduct provision), any of the Platform Policies, or any other documents applicable to Creator Network in connection with LIVE Backstage, then TikTok may: a. Issue a warning to Creator Network including through the Announcement Board or other means of communication;

	b. Remove “poached” or appropriated Creators from your Network (as defined in the Network Relationship Rules); c. Deduct Fees in an amount determined by TikTok in its sole discretion and/or postpone the remission of thereof; and/or d. Restrict or suspend your access to LIVE Backstage in whole or in part for a period of time determined by TikTok in its sole and absolute discretion.

SCHEDULE 3

Data Processing Addendum

Introduction:

(A) As a technology company with an extensive global reach, TikTok is committed to ensuring the safety and security of Personal Data in particular when shared with business partners.

(B) The purpose of this DPA is to ensure that TikTok has in place a lawful mechanism and appropriate safeguards to permit and protect any transfers of data with business partners.

(C) To ensure compliance with Applicable Data Protection Laws, this DPA sets out the data protection terms that will apply when TikTok shares personal data with Creator Networks ("Company") under the Terms.

Company Status (tick one on each row)			
GDPR (EEA or UK) AND LGPD	☐ Company is Controller	☒ Company is Processor	☐ Other: Please Specify
CCPA	☒ Company is a Service Provider	☐ Other: Please Specify	

TERMS

1 DEFINITIONS

1.1 In this DPA, the following terms shall have the following meanings:

"**Applicable Data Protection Law**"	means any and all applicable privacy, security breach notification, and data protection laws that apply to the Processing of the Personal Data in question.
"**Data Subject**"	means: (a) an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural group; and (b) any person who falls within the scope of a "data subject" (or any materially similar or analogous concept or definition, including "consumer" as defined under Applicable US Data Protection Law) under Applicable Data Protection Laws
"Effective Date"	means the date on which this DPA takes effect, which is the date of last signature of this DPA.
"Minimum Security Measures"	means the technical and organisational security measures with which Company must comply, as set out in Schedule B.
"**Personal Data**"	means: (a) any information relating to a Data Subject; and (b) any information which falls within the scope of "personal data", "personal information," or "personally identifiable information" (or any materially similar or analogous concept or definition) under Applicable Data Protection Laws. The Personal Data that is transferred pursuant to this DPA shall be as set out in the Terms
"**Processing**" (and "**Process**")	means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

"**Security Incident**"	means (a) a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Personal Data transmitted, stored, or otherwise Processed and (b) any event which falls within the scope of "security incident" (or any materially similar or analogous concept or definition, including "security breach" or "breach of the security of the system") under Applicable Data Protection Law.
"**Sensitive Data**"	means any Personal Data that is defined as "sensitive personal data," "sensitive personal information," or "special categories of data" (or any materially similar or analogous concept or definition) under Applicable Data Protection Law and which may therefore be subject to extra protections or restrictions governing its Processing.

1.2 In this DPA (a) references to a statutory provision include any subordinate legislation made from time to time under that provision; (b) references to this DPA include the Schedules; (c) headings shall be ignored for the purposes of interpreting this DPA; (d) if a word or phrase is defined, its other grammatical forms have a corresponding meaning; and (e) the words "include", "includes" and "including" and any succeeding words shall be construed without limitation to the generality of any preceding words or concepts.

1.3 If there is any inconsistency between this DPA and the Terms, this DPA shall take precedence. If there is any inconsistency between the Terms and the Schedules to this DPA, the Schedules shall take precedence.

2 TIKTOK OBLIGATIONS

2.1 TikTok shall comply with Applicable Data Protection Law at all times when transferring Personal Data to Company. This shall include, if and to the extent required by Applicable Data Protection Law, entering into such supplemental data transfer terms with Company as may be required by Applicable Data Protection Law (and, in the event of any conflict between any such supplemental data transfer terms and this DPA, those supplemental data transfer terms shall prevail).

3 COMPANY OBLIGATIONS

3.1 Company shall:

(a) comply with Applicable Data Protection Law at all times when Processing the Personal Data that is transferred by TikTok;

(b) Process the Personal Data only for the purpose(s) for which it was transferred by TikTok (as set out in the Terms), unless required otherwise by applicable law. If Company cannot do so for whatever reason, it will promptly inform TikTok and TikTok is entitled to suspend the transfer of Personal Data;

(c) ensure that persons authorised to Process the Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

(d) implement technical and organisational security measures to protect the Personal Data it receives in accordance with Applicable Data Protection Law. Such measures shall, at a minimum, include the Minimum Security Measures;

(e) promptly carry out any actions which are reasonably necessary for TikTok to comply with its obligations under Applicable Data Protection Law, including but not limited to cooperate with TikTok as necessary to fulfil the exercise of Data Subjects' rights laid down in

Applicable Data Protection Law (regardless of whether any such rights are exercised against TikTok or Company);

(f) cooperate with TikTok in connection with the arrangements provided for by this DPA, including by promptly responding to requests for information by TikTok

(g) notify TikTok immediately, and in any event within 24 hours, in the event of a Security Incident affecting Personal Data Processed by Company on behalf of TikTok, by sending written notice to securitynotice@bytedance.com, unless otherwise directed by an authorized TikTok representative in writing, such notification to include all known details relating to the Security Incident;

(h) on written request from TikTok from time to time, make available to TikTok (and any competent data protection authority) all information necessary to demonstrate compliance with Applicable Data Protection Law;

(i) notify TikTok without undue delay in the event of (i) any regulatory investigations/enquiry and processing against Company with respect to its Processing of Personal Data or (ii) any request for disclosure of Personal Data by a regulator, government agency, or law enforcement authority unless otherwise prohibited by applicable law to preserve the confidentiality of an investigation;

(j) provide TikTok with an opportunity to object before engaging any subcontractor that will Process Personal Data transferred from TikTok;

(k) ensure that it has a written agreement in place with all subcontractors that Process Personal Data transferred from TikTok that contains obligations on the subcontractor that are no less onerous than the obligations on Company under this DPA; Company remains liable for the Processing by subcontractor under the terms of this DPA; and

(l) immediately inform TikTok if it becomes aware that the laws applicable to Company will have a substantial adverse effect on Company's ability to protect the Personal Data in accordance with this DPA.

4 SPECIFIC JURISDICTIONAL PROVISIONS

4.1 Schedule A (Specific Jurisdictional Provisions) contains one or more sub-schedules that set out specific local law requirements that may apply to transfers under this DPA from, to or within specific jurisdictions.

4.2 Where and to the extent that any of the local law requirements set out in the sub-schedules to Schedule A apply, TikTok and/or Company (as applicable) must comply with them, and such local law requirements shall prevail over the provisions set out in the body of this DPA if and to the extent any conflict arises (unless the provisions set out in the body of this DPA are more protective of the Personal Data, in which event those provisions shall continue to apply).

5 COMMENCEMENT, SUSPENSION AND TERMINATION

5.1 This DPA shall enter into effect on the Effective Date and continue indefinitely unless and until terminated in accordance with its terms.

5.2 In the event that Company is in breach of its obligations under this DPA, then TikTok may temporarily suspend the transfer of Personal Data to Company until the breach is repaired or this DPA is terminated.

5.3 This DPA shall terminate automatically upon termination of the Terms.

5.4 Upon termination or expiry of the Terms or after the end of provision of the services under the Terms, Company shall, at TikTok's option and within 30 days' of termination/expiry of the Terms or receipt of notice from TikTok, either:

(i) return all relevant Personal Data in Company's (or its subcontractors) possession to TikTok including but not limited to derivative copies and aggregated data; or

(ii) delete and stop processing all of the relevant Personal Data in Company's (or its subcontractors) possession including but not limited to derivative copies and aggregated data, unless retention is required under Applicable Data Protection Law.

Notwithstanding anything to the contrary, Company shall be solely responsible and have unlimited liability for any breach, violation, or negligence on its (or its subcontractors') behalf of the requirements listed in this clause.

5.5 The following clauses, and provisions referred to by such clauses, shall survive termination or expiry of this DPA together with any other provisions which by their nature or are expressed to survive expiry or termination or are intended or required to give effect to the expiration or termination of this DPA: Clause 1, Clause 5.4, this Clause 5.5, Clause 3.1 (c), Clause 6, and Clause 7.7.

6 INDEMNITY

6.1 Company shall indemnify and keep indemnified TikTok and its affiliates in respect of all costs (including legal costs), claims, demands, actions, settlements, ex-gratia payments, compensation, fines, charges, procedures, expenses, losses and damages suffered or incurred by, awarded against, or agreed to be paid by, TikTok and its affiliates arising from or in connection with any actual or alleged breach by Company of its obligations under this DPA or Applicable Data Protection Law.

6.2 Company's liability for the indemnity provided in this Clause 6 shall not be limited or excluded (including by any provision in the Terms.).

7 MISCELLANEOUS PROVISIONS

7.1 Any notice given under this DPA (a "**Notice**") shall be in writing. A Notice may be sent by first class post (and air mail if overseas) or by email. Unless there is evidence that it was received earlier, a Notice is deemed given: (a) if sent by post (except airmail) two business days after posting it; (b) if sent by airmail, six business days after posting it; and (c) if sent by email, one business day after sending it (regardless of any out of office receipt notice that may be received from the recipient).

7.2 Failure by any party to enforce its rights under this DPA shall not be taken as or deemed to be a waiver of such right.

7.3 TikTok may assign or transfer any of its rights or obligations under this DPA without the prior written consent of Company. Company shall not assign or transfer any of its rights or obligations under this DPA without the prior written consent of TikTok, such consent not to be unreasonably withheld.

7.4 The parties agree that this DPA (together with the Terms) sets out the entire agreement between them with respect to its subject matter. The parties also acknowledge that they have not been induced to enter into this DPA by any representation, warranty or undertaking not expressly incorporated into it, provided that neither party is attempting to exclude any liability for fraudulent statements (including fraudulent pre-contractual misrepresentations on which the other party can be shown to have relied).

7.5 In the event that TikTok reasonably determines that updates to this DPA in connection with Applicable Data Protection Law are required or advisable, TikTok may update this DPA and provide

notice of the updated DPA to Company and the updated DPA will become effective thirty (30) days after such provision of notice (unless required under applicable law to be effective sooner).

7.6 This DPA may be entered into in any number of counterparts, all of which taken together shall constitute one and the same instrument.

7.7 This DPA shall be governed by the laws, and shall be subject to the non-exclusive jurisdiction of the Courts for disputes, as set out in the Terms (as if the relevant provision were set out here with all necessary changes) save where and to the extent otherwise required by Applicable Data Protection Law in respect of any Personal Data shared under this DPA.

SCHEDULE A

SPECIFIC JURISDICTIONAL PROVISIONS

This Schedule A (Specific Jurisdictional Provisions) sets out specific local law requirements that may apply to TikTok in respect of any transfer of Personal Data from, to or within specific jurisdictions. If there is any conflict between the provisions of this Schedule A and the body of this DPA, Clause 4.2 of this DPA shall apply to resolve such conflict.

SCHEDULE A-1: UNITED STATES

PART A–1.1: UNITED STATES – DEFINITIONS

1. In this Schedules A-1, the following terms shall have the following definitions:

   "**Applicable US Data Protection Law**" means any and all applicable federal, state, and local laws, regulations, rules, and orders that apply to the Processing of the Covered Data in question, including but not limited to those pertaining to privacy, security breach notification, and data protection.

   "**Covered Data**" means, in any form, format, or media, any data or information (i) relating to an identified or identifiable natural person or household (or the Processing of which is otherwise regulated under Applicable US Data Protection Law) ("**Personal Data**") and that is Processed by Company in connection with its performance of the Terms or (ii) otherwise of or relating to TikTok's products, services, or customers.

   "**Systems**" means any system, network, platform, database, computer, facility, application, software, hardware, interface, development or performance testing tool, telecommunications equipment, cables, storage device, or other technology used in connection with the Services.

   Any other capitalised terms used but not defined in this Schedule A-1 shall have the meaning given to them in Clause 1 (Definitions) of this DPA.

PART A–1.2: UNITED STATES – PROCESSING

1. Company shall Process Covered Data only to the extent reasonably necessary for the performance of its obligations to TikTok under the Terms and in accordance with TikTok's documented instructions and Applicable US Data Protection Law. The business purpose of the processing of Covered Data is outlined in the defined and specified services of the Terms. The categories of Personal Data are as described in the Terms. Without limitation to the generality of the foregoing, Company is specifically prohibited from: (i) selling Covered Data or sharing Covered Data for cross-context behavioral advertising; (ii) combining Covered Data with information received from any other source except as permitted by Applicable US Data Protection Law and in accordance with TikTok's documented instructions; or (iii) collecting, retaining, using, disclosing, or otherwise Processing Covered Data for a commercial purpose other than providing the Services as specified in the Terms or in any manner outside of the direct business relationship between Company and TikTok. Company shall not, and shall not cause anyone to, use, access, store, or otherwise Process any Covered Data outside the United States. Within sixty (60) days following expiration or termination of the Terms, or upon TikTok's earlier request at any other time, Company shall promptly delete all Covered Data, and cause any subcontractors to delete all Covered Data, except as specifically required under the applicable Terms.

2. **Subcontractors; Authorized Disclosures**. Company shall treat Covered Data as confidential information under theTerms, keeping it in strict confidence and preventing unauthorized disclosure to third parties other than (i) to a subcontractor engaged in a manner consistent with this Terms, but solely to the extent that such disclosure is necessary to perform the Services on behalf of TikTok, the subcontractor is subject to contractual terms at least as restrictive as set forth in these

Requirements, and Company provides TikTok with notice of and the opportunity to object to such subcontractor; or (ii) as required by Applicable US Data Protection Law. Company remains responsible and fully liable for the acts and omissions of each subcontractor.

3. **Security**. Company shall implement, maintain, and enforce a written information security program that incorporates administrative, physical, and technical measures to protect the security and confidentiality of Covered Data and the Systems used to Process Covered Data or that are material to the Services (the "**Security Measures**"). Such Security Measures shall, at a minimum: (i) be no less rigorous than accepted industry standards and practices for information security (i.e., ISO 27001/2 certified or SSAE 16 (Type 2) compliant); (ii) be appropriate to the risks presented by the nature of the Services and Company's Processing of Covered Data, in particular from any potential Security Incident; (iii) include the Minimum Security Measures; and (iv) comply with Applicable US Data Protection Law. Without limitation, if Company Processes cardholder or other payment card data under an Terms, then Company shall ensure that it is in compliance with the Payment Card Industry Data Security Standard (PCI-DSS) and certify to the same, upon request. Company grants TikTok the right to take reasonable and appropriate steps to stop and remediate the Company's unauthorized use of Covered Data.

4. **Security Incidents**. In the event of any Security Incident, Company shall, at its sole cost and expense and in accordance with Applicable Data Protection Law: (i) immediately (and in no event later than twenty-four (24) hours after becoming aware of the Security Incident) notify TikTok by sending written notice to securitynotice@bytedance.com, unless otherwise directed by an authorized TikTok representative in writing; (ii) promptly undertake an investigation of the Security Incident and reasonably cooperate with TikTok in connection with its investigation, including by preserving and making available to TikTok all relevant records, logs, files, or other relevant materials and regular updates; and (iii) as directed by TikTok, promptly undertake appropriate remediation measures, including without limitation development and delivery of notices to individuals, credit monitoring and any other measures required by Applicable US Data Protection Law or otherwise commensurate with the nature of the Security Incident. Company shall promptly reimburse TikTok for all costs and expenses (including legal fees) reasonably incurred by TikTok in connection with a Security Incident. Company shall not publicize or deliver any notices referencing a Security Incident in a manner that identifies TikTok without prior written approval from TikTok.

5. **Compliance**. Company shall comply with its obligations under Applicable US Data Protection Law and shall also reasonably cooperate and assist TikTok to comply with TikTok's obligations under Applicable US Data Protection Law, including without limitation by notifying TikTok if Company can no longer meet its obligations under these Requirements or Applicable US Data Protection Law no later than five (5) days after the Company makes such determination. Company grants TikTok the right to take reasonable and appropriate steps to ensure that Company uses Covered Data in a manner consistent with TikTok's obligations under Applicable US Data Protection Law. Without limitation to the foregoing, Company shall reasonably assist TikTok to respond to any (i) request by an individual to exercise rights with respect to Covered Data; or (ii) inquiry or other communication from a legal or regulatory authority with respect to Covered Data and shall promptly notify TikTok of Company's receipt of either of the foregoing. TikTok shall notify the Company of any request by an individual to exercise rights with respect to Covered Data and provide the information necessary for Company to comply with such request. Company agrees that TikTok has the right to take reasonable and appropriate steps to stop and remediate any breach of these Requirements, including any unauthorized Processing of Covered Data. Company shall undertake an independent third-party audit of Company's privacy and security practices at least once per year covering the preceding twelve (12) month period and the relevant scope of Systems and Services, and, upon TikTok's request, provide copies of such audits to TikTok.

SCHEDULE A-2: BRAZIL

1. Definition

1.1 All terms defined in this DPA shall have the same meaning when used in this Schedule A-3, except where otherwise provided below:

"Personal Data" or **"Data"** any information obtained due to the contractual relationship, relating to an identified or identifiable natural person;

"Controller/TikTok" means a natural person or a legal entity, public authority, agency or other body that makes decisions on processing personal data;

"Processor/the Company" means a natural person or a legal entity, public authority, agency or other body that processes personal data on behalf and according to the instructions of the controller;

"Sensitive Data" has the meaning given to the term in Brazilian General Data Protection Law - LGPD;

"Regulator" means the Brazilian National Data Protection Authority ("ANPD"), which has jurisdiction over Customer's Processing of Brazilian Personal Data;

"Data Protection Laws" means all Applicable Laws and regulations relating to the protection of Personal Data, especially the Brazilian General Data Protection Law – LGPD and any applicable regulation;

"Data Subject" means the identified or identifiable natural person to whom the Personal Data refers;

"Processing" means any operation or set of operations carried out with Personal Data, such as its collection, recording, organizing, structuring, storing, adapting or altering, retrieving, consulting, using, disclosing by transmission, circulation or making available by other means, alignment or combination, restriction, exclusion or destruction;

"International Data Transfer" means any transfer of Personal Data to a foreign country or international body of which the country is a member; and

"Security Incident" means any incident of improper, unauthorized access to, data breach or data loss.

2. Roles

2.1 The Parties acknowledge and agree that:

(A) The Company shall process Data on behalf of TikTok for the purposes of providing the services, and

(B) TikTok remains at all times the Controller primarily responsible for the Personal Data.

3. TikTok's Obligations

3.1 Prior to disclosing any Data to the Company, TikTok shall inform the Data Subjects about the Purposes for which their Personal Data will be processed and shared.

4. The Company's Obligations

4.1 The Company shall take all necessary measures to demonstrate compliance with the obligations laid down in the LGPD and shall allow for and contribute to audits, including inspections conducted by TikTok or an auditor mandated by TikTok.

4.2 If the Company is to entrust all or part of the handling of Data to a sub-processor, it may make a written confirmation request to TikTok concerning the status of the security control measures of the sub-processor.

4.3 At TikTok's request, the Company shall cause the sub-processor to be subject to an audit of its handling of Data.

5. International Data Transfer

5.1 Data may be transferred to, and processed in, countries other than Brazil.

5.2 The Company will take appropriate safeguards to require that Data will remain protected in accordance with the LGPD. These include implementing the Standard Contractual Clauses or other transfer mechanisms provided by the LGPD for international transfers of personal data between the parties.

5.3 In respect of transfers of Personal Data from Brazil for the purposes of the LGPD, the Parties shall enter and comply with the Brazilian Standard Contractual Clauses as set out in Schedule E.

6. Termination

6.1 This DPA will remain in force for the duration of the Terms or so long as the Company is processing Data, whichever is later.

6.2 Upon termination of the DPA or after the end of provision of any services under the Terms, the Company shall return all relevant personal data in its possession to TikTok, delete and stop processing all of Data, except if otherwise required by law or regulations.

SCHEDULE B

MINIMUM SECURITY MEASURES

Company shall implement the following Minimum Security Measures in addition to any technical and organizational measures otherwise set out by the Terms. These Minimum Security Measures may be changed from time to time by TikTok (acting reasonably) providing Company with a replacement set of minimum security measures. Company will document, implement, and maintain an information security program that meets the standards of best industry practice to protect such Personal Data, which will include:

Information Security Policies

- Approved security policies aligned to the highest industry standards
    - a policy governing access to data;
    - a policy governing data sharing with third parties; and
    - process for reporting suspected violations of our policies
- At a minimum annual review of information security policies
- Appropriately detailed data map

Organization of Information Security

- Dedicated information security function responsible for security initiatives and operations
- Designated roles and responsibilities within the security function
- Dedicated internal audit function

Human Resource Security

- Contractually binding confidentiality obligations on all personnel handling confidential and/or personal data
- Security awareness, education, and training upon onboarding and at regular intervals
- Background checks for all employees to the extent permitted by the applicable laws
- Disciplinary process for policy violations to the extent permitted by internal policy and local applicable law
- Termination or change of employment controls

Asset Management

- Management oversight of assets such as servers, databases, and user endpoints
- Assigned ownership for all assets
- Classification and handling of assets

Access Control

- Remote access to the IT systems via VPN tunnels, where appropriate, or other state-of-the-art secure, encrypted connections
- Least privilege, and need-to-know basis security concepts embedded into the access management process
- Access authentication program
- Periodic review of access rights (at least annually)
- Access termination within 48 hours for separated users
- Use of multi-factor authentication (MFA) and/or single signon (SSO) to access systems from which TikTok's data is accessed.
- Password complexity and configuration requirements in accordance with TikTok standards

Cryptography

- Encryption of data at rest via AES 256
- Key management system with applicable security controls

Physical and Environmental Security

- Physical entry controls
- Security of equipment and assets off-premises
- Secure disposal or reuse of equipment
- Where Company is engaged to provide data storage services:
    - appliances for the monitoring of temperature and humidity in data centers;
    - redundant power supply units are built into the systems, where appropriate, to help ensure an uninterrupted supply of power to the data center and storage locations; and
    - Fire/smoke detectors and fire extinguishers or fire suppression system in data centers.
- Visitor access and authorization program

Operations Security

- Approved change management process for changes to products and infrastructure
- An appropriate backup methodology to ensure data integrity and timely restoration of core operational data
- Secure event log preservation
- Quarterly vulnerability scanning of systems and environment
- Annual penetration testing of systems and environment

- Endpoint Detection & Response (EDR) to protect endpoints
- Annual audit of system configurations and controls
- Server and infrastructure components hardening

Communications Security

- Network protection including security intrusion-detection-system, anti-malware software, anti-distributed denial of service software, firewalls deployed across the environment, etc.
- Segregation of networks into zones
- Network monitoring services in place 24 x 7 x 365 to detect unauthorised activities

System acquisition, development, and maintenance

- Secure software development process to enable the creation of software that incorporates security into every phase of the software development life cycle (SDLC). Security is baked into the code from inception rather than addressed after testing reveals critical product flaws.
- Separation of development and production environments
- Periodic review of open-source and third-party source code libraries
- Static and dynamic scanning of source code.
    - Static scans review the code for vulnerabilities before it is packaged into the front-facing application. These are performed annually to address vulnerabilities in source code and compiled applications
    - Dynamic scans are performed during code changes after the compilation of the code and is to identify run-time errors in the application

Supplier relationships

- Third party risk management program enables ongoing identification, assessment, monitoring and mitigation processes to manage the risks that occur with using vendors, establishing partnerships and outsourcing services.
- Process to respond to regulatory and user requests
- Capability to respond to security and privacy questionnaires from TikTok within 10 business days.
- Provide the annual data flow diagram and annual 3rd party security audit report (i.e., SOC2 Type 2 or ISO27001) for the service provided
- Provide the latest annual 3rd party network and application penetration test summary report

Information security incident management

- Incident management program
- Forensic capability for collecting incident data
- Business Continuity program to ensure redundancy of products and infrastructure

- Business Disaster program to ensure recovery of personnel and infrastructure in the event of a disaster
- Business impact analysis to identify critical systems and processes
- Logging of access and forensic capabilities to preserve logs and evidence for investigations where necessary